

23STCV13359 23STCV13359

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Case Number: 23STCV13359 Hearing Date: July 6, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

2633 MANNING CHEVIOT HILLS,

Plaintiff,

vs.

CHASE N' PROPERTIES, INC., et al.,

Defendants.

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CASE NO.: 23STCV13359

[TENTATIVE] ORDER GRANTING MOTION FOR JUDGMENT
ON THE PLEADINGS; STRIKING NOTICE OF UNAVAILABILITY

Dept. 506

8:30 a.m.

July 6, 2026

On

June 12, 2023, 2633 Manning Cheviot Hills LLC (“Manning Cheviot”) filed this action against Chase N’ Properties Inc. and Cassandra Chase (collectively, “Chase”), and on August 3, 2023, it filed a first amended complaint (“FAC”).

On

May 10, 2024, Chase filed a cross-complaint.

On

June 10, 2026, Manning Cheviot filed a motion for judgment on the pleadings as to the cross-complaint.

JUDGMENT
ON THE PLEADINGS

A

motion for judgment on the pleadings is the functional equivalent to a general demurrer. (Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am. (1996) 44 Cal.App.4th 194, 198.)

Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) The Court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

The cross-complaint's sole cause of action is for declaratory relief. A person who desires a declaration of his or her rights or duties with respect to another may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an action for a declaration of rights or duties, either alone or with other relief. (Code Civ. Proc., § 1060.) “Declaratory relief generally operates prospectively to declare future rights, rather than to redress past wrongs. [Citations.] It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs. In short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.)

The FAC alleges that the parties entered into a Joint Venture Agreement to purchase and develop a parcel of residential real estate. (FAC ¶ 8.) In exchange for Manning Cheviot advancing money for the purchase, Chase agreed to pay a Monthly Guaranteed Payment of \$6,000.00 a month until the project was completed and the property sold. (FAC ¶¶ 9-10.) In August 2019, Chase breached the Joint Venture Agreement by failing to pay the Monthly Guaranteed Payment and abandoning the project. (FAC ¶ 12.) The property was lost to foreclosure in July 2020. (FAC ¶ 13.)

Chase seeks “a judicial determination of the parties’ respective rights and duties under the Joint Venture Agreement, and a declaration that the Joint Venture Agreement is void and unenforceable.” (Cross-Complaint ¶ 10.) This relief is retrospective and does not address future rights and duties. Chase is requesting a determination of whether any party breached the Joint Venture Agreement and what, if any, damages are available.

Chase

relies on the FAC's allegation that damages are continuing under the Monthly Guaranteed Payment, and "[t]he FAC does not address—and the purported Joint Venture Agreement is likewise silent as to—what occurs if the Property is lost to foreclosure before the project is completed." (Opposition at pp. 6-9; see FAC ¶ 14.) But the Joint Venture Agreement provides for monthly payments "for the duration of the Project," and the property was lost to foreclosure in July 2020. (FAC, Ex. A, § 2.1.5; FAC ¶ 13.) The project necessarily ended upon loss of the property. The most prominent remaining issue is the damages calculation based on past events.

Chase also argues that the authenticity of signatures and the validity of the Joint Venture Agreement are contested issues. (Opposition at p. 9.) These are defenses for the FAC's claims of breach of contract. They do not involve future rights.

The motion for judgment on the pleadings is GRANTED.

The Court will enter judgment in favor of Manning Cheviot on the cross-complaint upon resolution of the FAC.

ORDER STRIKING NOTICE OF UNAVAILABILITY

On June 22, 2026, Chase's counsel filed a Notice of Unavailability of Counsel.

"It has apparently become common practice in the trial courts for litigants to file a 'notice of unavailability' under the guise of *Tenderloin Housing Clinic, Inc. v. Sparks* (1992) 8 Cal.App.4th 299, 10 Cal.Rptr.2d 371. The notice purports to advise the other parties to the action—as well as the Court—that the deliverer will not be available for a prescribed period of time and that no action may be taken during that period which adversely affects the unavailable party. To the extent this practice attempts to put control of the Court's calendar in the hands of counsel—as opposed to the judiciary—it is an impermissible infringement

of the Court's inherent powers." (Carl
v. Superior Court (2007) 157 Cal.App.4th 73, 74-75.)

As
the Carl court explained, "[n]othing in Tenderloin, however, expressly
condones the practice that has grown up around its name. It has simply been made up." (Id. at 76.)

The
Court, on its own motion, STRIKES the Notice of Unavailability of Counsel under
Code of Civil Procedure section 436, subdivision (b).

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 6th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court